



File No.: EXP202309054

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter the claimant) filed a complaint with the Spanish Agency for Data Protection on 20/05/2023. The complaint is directed against ATRIUM LEX SFC, S.L. with NIF B87634564 (hereinafter the respondent). The reasons for the complaint are as follows: the claimant states that the respondent manages various real estate projects in which different investors participate, with the claimant being an investor in several of the projects managed by the respondent, indicating that when requesting information about these projects, a copy of the applicant's ID card is requested, without being informed about the data processing to be carried out. The claimant provides copies of emails exchanged with the respondent entity in which the claimant requests information about several projects managed by the respondent, and the respondent requests a copy of their ID card to verify their identity as an investor in those projects.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on 29/06/2023, this complaint was forwarded to the respondent/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the established period for availability, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 10/07/2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on 11/07/2023. In this notification, they were reminded of their obligation to communicate electronically with the Administration, and they were informed of the means of access to such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means.

On 02/08/2023, the respondent responded, stating, in summary, the following: that the claimant is a partner in three companies of which

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The respondent holds the position of sole administrator and therefore, in their capacity as administrator of the company, in accordance with current legislation, is responsible for the Register of Members of the Entity.

The company, as administrator and responsible for the Register of Members, has not violated any provision affecting the privacy of the members and will reinforce its procedures and proceed to include the use of the free tools provided by the Spanish Agency for Data Protection.

THIRD: On 20/08/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On 27/12/2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Articles 13 and 32.1 of the GDPR, classified under Articles 83.5.a) and 83.4.a) of the GDPR, with fines of €50,000 (fifty thousand euros) each.

FIFTH: Upon notification of the initiation agreement, on 19/01/2024, the respondent submitted a written statement of allegations summarizing the following: that the complaint made by the claimant originates from their status as a member of three companies of which the respondent is the sole administrator; that the claimant approached the respondent in their capacity as an investor, although they acknowledged that they had made a mistake regarding which projects they were investing in, a reason

that further emphasized the need to confirm their identity; that the facts stated in their complaint by the claimant are false and constitute a possible crime of false accusation; they request testimonial evidence.

SIXTH: On 03/10/2024, a period for the practice of evidence was initiated, agreeing on the following:

- To consider the complaint filed by the claimant and its documentation, the documents obtained and generated by the Inspection Services that are part of the file, as reproduced for evidentiary purposes.
- To consider the allegations to the initiation agreement presented by the respondent and the accompanying documentation as reproduced for evidentiary purposes.
- To request from the respondent: the Privacy Policy or Legal Notice of the company, measures implemented to comply with Article 13, implementation dates, and controls carried out to verify their effectiveness; the Register of Processing Activities and the Risk Analysis and Impact Assessment in the processing of data.

On the other hand, it was communicated regarding the requested testimonial evidence that the claimant's statement about the motivation for the complaint is not within the competence of the AEPD to investigate or ascertain the stimuli or psychological reasons that drive someone to file a complaint or report; its competence is limited to determining whether the behaviors can be subject to reproach for not complying with the regulations on the protection of personal data.

And regarding the statement of the administrator of the companies that are the subject of the file, as well as the confrontation between that party and the claimant, they were considered irrelevant and not suitable for the resolution of the present sanctioning procedure.

- The claimant was requested to provide documentation that proves their status as an investor and the projects in which they participate and whether they are registered as a user on the Housers Global Properties PFP, S.L. crowdfunding platform.

On 03/10/2024, the claimant responded to the evidence practiced, the content of which is in the file.

SEVENTH: On 13/11/2024, a Proposal for Resolution was issued stating that the Director of the Spanish Agency for Data Protection should sanction the respondent for the infringement of Articles 13 and 32.1 of the GDPR, with a fine of €50,000 (fifty thousand euros) each.

On 10/12/2024, the respondent submitted a written statement of allegations against the Proposal for Resolution, summarizing: what the position of the respondent is regarding the processing of personal data and the alleged violation of Article 13 of the GDPR; regarding the alleged violation of Article 32.1 of the GDPR; the violation of the principle of proportionality; requesting that a resolution be issued agreeing to archive the present procedure.

EIGHTH: From the actions taken in the present procedure, the following have been established:

PROVEN FACTS

FIRST. On 20/05/2023, a complaint from the claimant was received by the AEPD in which they state that the respondent manages real estate projects in which various investors participate, with the claimant being an investor in some of the projects, indicating that when requesting information about them, they are asked to provide a copy of their ID, without being informed about the data processing to be carried out.

SECOND. Emails exchanged between the parties have been submitted:

- 28/06/2022

The claimant:

“(…)

I would like to know the status of accounts and whether or not the projects ***PROJECT.1 and ***PROJECT.2 are rented and for sale.

(…).

(…)”

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- 04/07/2022

The Respondent

“(...)

In order to confirm that you appear in the partner database of said project, we would need you to send us a scanned ID to verify it and provide you with the information.

(...)”

- 04/07/2022

The Claimant:

“(...)

I made a mistake, I do not have participation in ***PROJECT.2, I would like to receive information about ***PROJECT.1 and ***PROJECT.3, thank you.

(...)”

- 12/07/2022

The Claimant

“(...)

I would also like to know the status of the project ***PROJECT.4 and propose a meeting to set a market price so that I do not have to pay the rent for the tenants who will live well while I pay for several years.

(...)”

- 13/09/2022

The Claimant

“(...)

I am a partner of the companies from which I have been requesting documents since June, I understand that it has been misplaced and you will send it immediately. Thank you.

(...)”

THIRD. The Respondent in a written statement dated 02/08/2023 has stated that “The claim made by the claimant originates from their status as a partner of three companies of which the Respondent is the sole administrator and therefore, in their capacity as administrator of the company, according to current legislation, we are responsible for the Register of Partners of the Entity.

In response to the claimant's request, it is the administrator's obligation to verify the identity of the individuals requesting data in their capacity as partners, which is why it is requested that they justify their identity, as explained in the email that the claimant attached, where the processing of the data requested for verification is explained” (the underlining corresponds to the AEPD).

FOURTH. The Claimant in a written statement dated 04/1/2024 has provided information as an investor in certain projects.

FIFTH. The Respondent has not responded to the evidence presented in which they were requested to provide the Privacy Policy or Legal Notice and measures implemented to comply with Article 13 of the GDPR, controls carried out to verify its effectiveness; the RAT and Risk Analysis and Impact Assessment carried out in the processing of the data.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this

organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Powers of the supervisory authority

Article 58 of the GDPR, Powers, states:

“2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)”

III

Allegations to the Proposed Resolution

1. The Respondent has alleged regarding the purported violation of Article 13 of the GDPR.

The Respondent in their written allegations states that the Claimant holds the status of investor in certain investment projects developed by the entity Housers Global Properties PFP. S.L., being the party

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Claimed administrator of the aforementioned projects, thus holding the status of data processor in relation to the mentioned entity.

However, such arguments cannot be accepted; it must be noted that the claimed party has not provided any evidence to support its argumentation.

The aforementioned allegation is not supported by any evidentiary element; it merely states that the duty to inform in accordance with Article 13 of the GDPR corresponds to the data controller, a matter that therefore does not concern it as it holds the status of processor.

Article 4 of the GDPR, Definitions, in its section 8 defines the “data processor” or “processor”: “the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller.”

Article 28 of the GDPR, Data Processor, establishes that:

“1. When processing is to be carried out on behalf of a data controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and will ensure the protection of the rights of the data subject.

2. The data processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.

3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a) shall process the personal data only on documented instructions from the controller, including with regard to the transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before the processing, unless that law prohibits such information on important grounds of public interest;

- b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;
- c) shall take all necessary measures in accordance with Article 32;
- d) shall respect the conditions laid down in paragraphs 2 and 4 for engaging another processor;

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- e) will assist the controller, taking into account the nature of the processing, through appropriate technical and organizational measures, wherever possible, so that the controller can comply with their obligation to respond to requests concerning the exercise of the rights of the data subjects established in Chapter III;
- f) will help the controller ensure compliance with the obligations set out in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;
- g) at the controller's choice, will delete or return all personal data once the provision of processing services has ended, and will delete existing copies unless the retention of personal data is required by Union or Member State law;
- h) will make available to the controller all necessary information to demonstrate compliance with the obligations set out in this article, as well as to enable and contribute to audits, including inspections, by the controller or another auditor authorized by the controller.

In relation to the provisions of letter h) of the first paragraph, the processor will immediately inform the controller if, in their opinion, an instruction infringes this Regulation or other provisions regarding data protection of the Union or Member States.

4. When a processor engages another processor to carry out specific processing activities on behalf of the controller, the same data protection obligations as those stipulated in the contract or other legal act between the controller and the processor referred to in paragraph 3 will be imposed on this other processor, through a contract or other legal act established in accordance with Union or Member State law, particularly the provision of sufficient guarantees to implement appropriate technical and organizational measures in such a way that the processing is compliant with the provisions of this Regulation. If that other processor fails to comply with its data protection obligations, the initial processor will remain fully liable to the controller for compliance with the obligations of the other processor.

5. The adherence of the processor to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may be used as an element to demonstrate the existence of sufficient guarantees referred to in paragraphs 1 and 4 of this article.

6. Without prejudice to the controller and the processor entering into an individual contract, the contract or other legal act referred to in paragraphs 3 and 4 of this article may be based, in whole or in part, on the standard contractual clauses referred to in paragraphs 7 and 8 of this article, even when they are part of a certification granted to the controller or processor in accordance with Articles 42 and 43.

7. The Commission may establish standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this article, in accordance with the examination procedure referred to in Article 93, paragraph 2.

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8. A supervisory authority may adopt standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this article, in accordance with the coherence mechanism referred to in Article 63.

9. The contract or other legal act referred to in paragraphs 3 and 4 shall be in writing, including in

electronic format.

10. Without prejudice to the provisions of Articles 82, 83, and 84, if a data processor infringes this Regulation by determining the purposes and means of processing, it shall be considered responsible for the processing in relation to such processing.

And the LOPDGDD in its Article 33, Data Processor, establishes that:

“(…)

2. A person shall be considered a data controller and not a processor if they establish relationships with the data subjects in their own name and without it being established that they act on behalf of another, even if there is a contract or legal act with the content set forth in Article 28.3 of Regulation (EU) 2016/679. This provision shall not apply to data processing assignments made under public sector contracting legislation.

A person shall also be considered a data controller if, while acting as a processor, they use the data for their own purposes.”

As previously noted, there is no document or evidence confirming that the claimed party acted as a data processor for Housers; moreover, neither in the information request made by the acting inspector nor in the subsequent allegations following the initiation agreement has any statement or allegation been made in this regard.

On the other hand, both in the preliminary proceedings and in the evidentiary phase, they were requested to provide their “Privacy Policy,” the date(s) of its implementation, measures taken to adapt it to Article 13 of the GDPR, and controls carried out to verify its effectiveness, without providing any documentation or response to the aforementioned requests.

This lack of cooperation does not seem very compatible with what is stated in Article 5.2 of the GDPR, which establishes:

“2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it (‘proactive responsibility’).”

The claimed party is obliged to carry out the appropriate activity to comply with data protection principles and to be in a position to demonstrate compliance.

2. The claimed party has alleged regarding the purported violation of Article 32.1 of the GDPR

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The claimed party considers that the Proposal for Resolution is based on a false premise since the claiming party was not requested to send a scanned copy of the ID via email and, therefore, cannot be held liable for the infringement of Article 32.1 of the GDPR as there was no reference or mention in the aforementioned email to the channel through which the documentation proving identity should be sent, and it merely requested a copy of the ID.

However, such an argument cannot be accepted; the claimed party in their response email to the claiming party requesting information about the projects in which they participated as an investor states:

“(…)

In order to confirm that you appear in the partner database of that project, we would need you to send us the scanned ID to be able to verify it and provide you with the information.

(…)”

It is true that the cited text does not specify that the submission of the scanned ID copy should be via email, although such a condition is implied given that communications between both parties were being carried out through that channel.

It is also true that if at no time did the claimed party mention the channel through which the claiming party should send the aforementioned documentation (scanned copy of the ID), it should be understood that the channel used, email, was considered valid and accurate, as otherwise, they would have offered the claiming party another means or alternative channel to do so, and in this case, given

the response provided, if they were not offering that opportunity for submission through another means, it was because they assumed that the email channel was the appropriate and relevant one for that purpose.

Finally, the claimed party seems to contradict itself as having made the above allegation, it states that the security of its communications is duly secured by having contracted the Office 365 service for the provision of email services, whose email application, as described by the CCN, has implemented guarantees aimed at ensuring the security of email, in order to prevent the integrity of the same from being affected.

However, this is also not true because communications via email are conducted in “clear text,” which means that if the communication is intercepted, access to the transmitted data can be obtained, as what Office truly guarantees is that the deposit or storage of emails in its systems is secure because it has implemented adequate security measures, but not that the communications of those emails are secure.

3. The claimed party has alleged regarding the violation of the principle of proportionality.

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The party being claimed alleges that in the event that it is considered that there has been a violation of the protection regulations, particular consideration must be given in determining the sanction that may be imposed to the application of the principle of proportionality.

It should be noted that Article 83.1 of the GDPR states that “Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this Article for the infringements of this Regulation referred to in paragraphs 4, 5, and 6 shall in each individual case be effective, proportionate, and dissuasive.”

Fines, therefore, as deduced from the invoked provision, must be effective, proportionate, and dissuasive for achieving the intended purpose of the GDPR.

It is true that for this system to function with all its guarantees, it is necessary for several elements to be deployed in an integral and complete manner. The application of rules foreign to the GDPR regarding the determination of fines in each of the Member States applying their national law, whether due to aggravating or mitigating circumstances not provided for in the GDPR—or in the LOPDGDD in the Spanish case as permitted by the GDPR itself—would undermine the effectiveness of the system, losing its meaning, its teleological purpose, and the will of the legislator, resulting in fines imposed for different violations ceasing to be effective, proportionate, and dissuasive. In this way, it would also deprive the interested parties of the effective guarantee of their rights and freedoms, weakening the uniform application of the GDPR. The mechanisms for protecting the rights and freedoms of citizens would be diminished, which would be contrary to the spirit of the GDPR.

The GDPR is equipped with its own principle of proportionality that must be applied in its strict terms. Regarding the principle of proportionality of sanctions, the National Court has stated in numerous rulings that the principle of proportionality cannot be exempt from judicial review, as the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing, in any case, the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that any sanction must be determined in congruence with the severity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the fact. Thus, proportionality constitutes a normative principle that is imposed on the Administration and that reduces the scope of its sanctioning powers.

Well, in accordance with the circumstances present in this case, which have been meticulously evaluated, this resolution does not violate the principle of proportionality in determining the imposed sanctions, resulting in a balanced and proportionate response to the severity of the infringements committed, the importance of the facts, as well as the circumstances taken into account to grade the sanction, without any reasons being appreciated that further justify the reduction made, especially

considering the amount to which they can be.

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to impose such sanctions in accordance with Article 83.5 of the GDPR, which provides for the infringement of Article 13 of the GDPR, “with administrative fines of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount” or in the case of Article 32.1 of the GDPR in accordance with Article 83.4 of the GDPR “4. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to €10,000,000 or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount.”

- In its written submissions, the respondent has stated that it requested and processed the data of the interested party in compliance with some diligences from Housers, on behalf of and for the account of the latter.

However, the respondent has not provided any evidence to substantiate its claims, despite the implausibility of anyone requesting a copy of another person's ID on behalf of someone else.

Furthermore, the respondent, who holds the position of sole administrator of the company, stated in its response to the initiation agreement dated 01/19/2024 that: “That said, we must emphasize that upon the request of the claimant, or any investor, it is the administrator's obligation to verify the identity of the individuals requesting data in their capacity as partners or investors, for which it is requested that they justify their identity, and this has been explained to them in the email that the claimant himself attached, where the processing of the data requested for verification is explained.

2. That the claimant addressed this entity in his capacity as an investor in the projects referenced in his emails, although he acknowledges that he has “made a mistake” in stating which projects he is an investor in, a reason that further emphasizes the need to confirm his identity, ...”

That is to say, the request for a copy of the ID was related to the accreditation of the claimant's identity, in his capacity as an investor in different projects, before the sole administrator of the company.

And it was already indicated in the Proposal for Resolution that, initially, the request for a copy of the ID could have a legitimate purpose, since it was a matter of verifying the claimant's status as an investor; however, it does not appear that he was informed in accordance with what is stated in Article 13 of the GDPR, that is, that he was provided with any information regarding the processing of his personal data.

And in the Recitals of the GDPR, the same idea is reiterated. Thus, Recital 61 indicates that “Data subjects should be provided with information on the processing of their personal data at the time it is obtained from them or, if obtained from another source, within a reasonable period, depending on the circumstances of the case (...)”

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And considering 62 “However, it is not necessary to impose the obligation to provide information when the interested party already possesses the information, (...).”

- The respondent has stated that the reasoning of the AEPD regarding the assessment of negligence in the conduct is inadequate, given that one thing is the assessment of fault as a requirement for a certain conduct to be constitutive of an infringement, and another is to appreciate that this element must always be considered as an aggravating factor.

Taking into account that the conduct of the respondent involves the element of culpability, which is indispensable to demand sanctioning responsibility, in this case, it is also specified in a very serious

lack of diligence violating the obligation to inform the affected party about the processing of their personal data.

This is because there is no element that allows us to conclude that any minimum diligence was observed to guarantee the aforementioned principle, as evidenced and as stated in the legal grounds of the Proposal for Resolution, which have not been refuted in any case.

Facts that are aggravated by the absence of collaboration with this management center, since the respondent was requested, both in the preliminary proceedings (on two occasions) and in the evidentiary phase, to inform about the measures adopted to adapt its "Privacy Policy" to Article 13 of the GDPR, the date(s) of implementation, and the controls carried out to verify its effectiveness, without providing any documentation or responding to the aforementioned requests.

Furthermore, the lack of diligence demonstrated in the infringing conduct for which they are held responsible must be classified as very serious; the respondent is obliged under Article 5.2 of the GDPR to carry out the appropriate activity to comply with the principles of data protection, particularly the obligation to inform, and to be in a position to demonstrate compliance.

- Finally, the respondent considers that the statement of the AEPD indicating that "we are faced with the absence of technical and organizational measures as a consequence of the lack of diligence in the actions carried out" is unfounded, as it is not possible to reach such a conclusion based on the fact that a copy of the ID card was requested by email.

It was already indicated regarding the ID card that its numerical identifier along with the corresponding verification character of the tax identification number unequivocally identifies a natural person. This quality makes it a particularly sensitive data, and this character is aggravated when referring to a scanned copy of the ID card, as a third party who has access to it can easily impersonate the identity of its holder and perpetrate actions that pose a high risk to the privacy, honor, and property of the impersonated individual.

The respondent has not provided any evidence that demonstrates that they had implemented adequate measures aimed at eliminating the risks of processing the scanned ID card, nor have they provided a secure means to the claimant for the...

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sending of the aforementioned documentation. It is not evidenced that an analysis of the risks involved in the request for the scanned ID card, via email, focused on the protection of the rights and freedoms of the interested parties, has been carried out, nor of the technical and organizational measures that may have been implemented to address such risks.

Furthermore, it should be noted that when the responding party was requested to provide during the evidentiary period the Record of Processing Activities, Risk Analysis, and the Impact Assessment on the processing of the data, the response was that there was no response to the request.

Therefore, based on the above, the allegations made by the responding party to the Proposal for Resolution cannot be accepted and must be dismissed.

IV

First obligation breached: infringement of Article 13 of the GDPR

The reported facts materialize in that the complaining party, an investor in some of the projects managed by the responding party, when requesting information about them was asked to provide a scanned copy of the ID card, without being informed about the data processing to be carried out in accordance with what is stated in Article 13 of the GDPR, which could violate the regulations on the protection of personal data.

Article 13 of the GDPR, Information to be provided when personal data are obtained from the data subject, establishes the following:

"1. When personal data relating to a data subject are obtained from the data subject, the data controller, at the time of obtaining them, shall provide the data subject with all the information indicated below:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the data are obtained, with..."

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personal data, the following information necessary to ensure fair and transparent data processing:

- a) the period during which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or erasure, or the restriction of processing, or to object to processing, as well as the right to data portability;
- c) when processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information on that other purpose and any other relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

This provision, in addition to determining in its paragraphs 2 and 3 the information that the data controller must provide, stipulates that this information must be provided at the time of data collection. However, the provision of Article 13, paragraphs 1 and 2, must be related to Article 13.4, which exempts from the obligation referred to in both provisions "when and to the extent that the data subject already has the information."

The recitals of the GDPR reiterate the same idea. Thus, recital 61 states that "Data subjects should be provided with information on the processing of their personal data at the time it is obtained from them or, if obtained from another source, within a reasonable period, depending on the circumstances of the case (...)." And recital 62 states that "However, it is not necessary to impose the obligation to provide information when the data subject already has the information, (...)."

In any case, it must be taken into account that according to recital 60, it is the responsibility of the controller to "provide the data subject with any supplementary information necessary to ensure fair and transparent processing,

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taking into account the specific circumstances and context in which personal data is processed.”

On the other hand, the principles set out in Article 5.1(a) of the GDPR, relating to the lawful, fair, and transparent processing of personal data, require that the data subject be informed of the existence of the processing and its purposes, as well as the additional information necessary to ensure fair and transparent processing. The data controller must provide the data subject with all necessary information to ensure fair and transparent processing, taking into account the specific circumstances and context in which personal data is processed.

Recital 39 of the GDPR states that: “The principle of transparency requires that all information and communication relating to the processing of such data be easily accessible and easy to understand, and that clear and plain language be used. This principle particularly refers to the information provided to data subjects about the identity of the data controller and the purposes of the processing, as well as the additional information necessary to ensure fair and transparent processing with respect to the affected individuals and their right to obtain confirmation and communication of the personal data concerning them that is being processed. Data subjects must be aware of the risks, rules, safeguards, and rights related to the processing of personal data, as well as how to exercise their rights in relation to the processing. In particular, the specific purposes of the processing of personal data must be explicit and legitimate, and must be determined at the time of collection. [...]”

Therefore, information about the processing of their personal data must be provided to data subjects at the time it is obtained from them or, if obtained from another source, within a reasonable timeframe, depending on the circumstances of the case. When personal data concerning the data subject is obtained from the data subject, the data controller must provide them with all the information about the processing of their data as indicated in Article 13 of the GDPR at the time of collection.

In this case, as evidenced by the exchanged emails, the claimant, an investor in certain projects managed by the respondent, requested that a scanned copy of the ID card be provided to verify the investor status of the information requester. Although this initially appears to be a request with a legitimate purpose, namely to verify the investor status of the information requester, it does not appear that the data subject was informed in accordance with the provisions of Article 13 of the GDPR, that is, that any information regarding the processing of their ID card data was provided.

Furthermore, when the respondent was requested, during the proceedings (on two occasions), to provide information about the measures taken to adapt their “Privacy Policy” to Article 13 of the GDPR, including implementation dates and controls carried out to verify its effectiveness, no documentation was provided.

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And during the evidentiary phase, they were again requested to provide the company's Privacy Policy or Legal Notice, the relevant measures for its adaptation in accordance with Article 13, without any response being given. This conduct is considered to violate Article 13 of the GDPR, classified under Article 83.5(b) of the GDPR.

V

Classification of the infringement of Article 13 GDPR

The infringement of Article 13 of the GDPR is classified under Article 83.5(b) of the GDPR, which states: “Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

(...)

b) the rights of data subjects under Articles 12 to 22; (...)"

(...)

For the purposes of limitation, the LOPDGDD classifies this conduct in Article 72.1(h) as a very serious infringement and sets a limitation period of three years for it. The provision states:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, very serious infringements shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law."

(...)

VI

Second obligation breached: infringement of Article 32.1 of the GDPR

Secondly, Article 32 of the GDPR "Security of processing" establishes that:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

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b) the ability to ensure the confidentiality, integrity, availability, and permanent resilience of the processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regular verification, evaluation, and assessment of the effectiveness of the technical and organizational measures to ensure the security of the processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the data processing, particularly as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.

1. The GDPR defines personal data security breaches as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

The documentation in the file provides clear evidence that the respondent has violated Article 32 of the GDPR, due to a lack of diligence in not adopting appropriate technical and organizational measures to ensure a level of security appropriate to the risk of processing, as a result of the request for a scanned copy of the ID card via email to verify the identity of the member, a method that is not very secure for requesting such documentation.

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and

the processor shall apply technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of technical and organizational measures must be made taking into account: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after a

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incident, verification process (not audit), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by data processing, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same regard, Recital 83 of the GDPR states that:

“(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that needs to be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, particularly those that could cause physical, material, or immaterial harm.”

2. In the case analyzed, as stated in the facts, the AEPD forwarded the complaint presented to the respondent for analysis, requesting the provision of information related to the claimed incident.

The respondent in their writing dated 02/08/2023 stated that “In response to the request from the complainant, it is the administrator’s obligation to verify the identity of the individuals requesting data in their capacity as members, therefore it is requested that they justify their identity, as explained in the email that the complainant attached, where the processing of the data requested for verification is explained.”

As noted in the initiation agreement, the Register Book is a list that records the names of those who are members of a public or limited company at any given time, and it is the responsibility of the company’s administrators to maintain it, allowing them to know who they must consider as a member at any given time for purposes, for example, of allowing participation in social meetings, paying dividends, etc. Therefore, it is said that the register book has a legitimizing function.

However, it does not seem that the method used to request a scanned copy of the ID card via email is a very secure method of verifying the identity of the member requesting the information, in light of the risks it may pose.

On this particular matter, it is worth recalling that Recitals 51 and 75 of the GDPR distinguish a group of personal data that, by their nature, are particularly “sensitive” due to the significant risk that their processing may entail.

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for fundamental rights and freedoms. Their common denominator is the risk they pose to fundamental

rights and freedoms, as their handling can lead to physical, material, or immaterial harm.

Included in this group or category are the specially protected data regulated by Article 9 of the GDPR -recital 51 of the GDPR- and many others not mentioned in that provision. Recital 75 details the personal data whose processing may entail varying degrees of severity and probability of risk to the rights and freedoms of individuals, as they may cause physical, material, or immaterial harm. Among them, it refers to those whose processing "may lead to issues of discrimination, identity theft or fraud, financial losses, damage to reputation, loss of confidentiality of data subject to professional secrecy, unauthorized reversal of pseudonymization, or any other significant economic or social detriment."

The numerical identifier of the ID card along with the verification character corresponding to the tax identification number unequivocally identifies a natural person. This quality makes it a particularly sensitive data, and this character is exacerbated when referring to a scanned copy of the ID card, as a third party with access to it can easily impersonate its holder and engage in conduct that poses a high risk to the privacy, honor, and property of the impersonated individual.

The responding party should have adopted appropriate technical and organizational measures aimed at mitigating the risks of processing the scanned ID card, following an analysis of those risks, providing a secure means for the claimant to send the documentation. However, it has not demonstrated that it conducted an analysis of the risks associated with the request for the scanned ID card via email, focused on protecting the rights and freedoms of the data subjects, nor the technical and organizational measures it had implemented to address such risks.

The responsibility of the respondent is determined by the absence of adequate measures evidenced, as it is responsible for making decisions aimed at effectively implementing appropriate technical and organizational measures to ensure a level of security appropriate to the risk, restoring its availability and preventing access to it in the event of a physical or technical incident.

It is therefore questioned whether email constitutes a secure means for sending documentation, such as in this case the scanned copy of the ID card, when security must be guaranteed. It is considered that sending the requested information via a simple email is not an adequate measure based on the risk to the rights and freedoms of individuals due to the careless use that could be made of email, and therefore the responding party should have adopted appropriate security measures based on the risk to protect the rights and freedoms of the claimant concerning the processing of the data subject to this procedure.

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In accordance with the above, it is estimated that the respondent would be responsible for the infringement of the GDPR: the violation of Article 32, an infringement classified in its Article 83.4.a).

VII

Classification of the infringement of Article 32.1 of the GDPR

The violation of Article 32 of the GDPR is classified in Article 83.4.a) of the aforementioned GDPR in the following terms:

"4. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43.
(...)"

For its part, the LOPDGDD in its Article 73, for the purposes of prescription, classifies as "Serious Infringements":

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following are

considered serious and shall prescribe after two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

g) The breach, as a result of a lack of due diligence, of the technical and organizational measures that should have been implemented in accordance with the requirements of Article 32.1 of Regulation (EU) 2016/679. (...)"

(...)"

VIII

Sanction for non-compliance with the committed infringements

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, due consideration shall be given to:

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a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any previous infringements committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potential adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement."

In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be

attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

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- In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in the present case for the infringement of Article 13 of the GDPR, classified under Article 83.5.a) of the GDPR for which the respondent is held responsible, the following factors are deemed concurrent:

The nature and severity of the infringement, as it should not be forgotten that we are dealing with the violation of the duty to inform the affected party about the processing of their personal data, which is reproached in the GDPR with the utmost seriousness; the claimant has not provided any evidence that proves they had adopted measures to align the processing with the provisions of Article 13, its implementation date, controls to verify its effectiveness regarding the processing of the claimant's data, etc. (Article 83.2.a) of the GDPR).

The degree of cooperation with the supervisory authority in order to remedy and mitigate the possible adverse effects of the infringement; when required during the investigation phase (on two occasions) and in the evidentiary phase to provide information regarding the Privacy Policy or Legal Notice, the respondent did not respond at any time to the requests made (Article 83.2.a) of the GDPR).

The intentionality or negligence in the infringement; there is a serious lack of diligence in the actions of the entity derived from the processing of the claimant's data. Also connected with the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited, which, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that “(...) the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not act with the required diligence. And in assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard” (Article 83.2.b) of the GDPR).

The activity of the allegedly infringing entity is linked to the processing of data from both customers and third parties. The respondent, given the nature of their activity, finds it essential to process personal data of both customers and third parties, so the significance of their conduct subject to this procedure is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

In light of the aforementioned circumstances, it is deemed appropriate to establish a fine of 50,000 euros.

- In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in the present case for the infringement of Article 32.1 of the GDPR, classified under Article 83.4.a) of the GDPR for which the respondent is held responsible, the following factors are deemed concurrent:

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The nature and severity of the infringement, as the claiming party demonstrates a lack of technical and organizational measures, resulting in a lack of diligence in the conduct developed, which is reproached

under the GDPR with the category of serious. It is considered that entities that, by their activity, process personal data must comply with the requirements contained in the regulation and adopt due diligence in the application of measures appropriate to the risk of processing for the rights and freedoms of the data subjects. The responding party has not provided any evidence that it had implemented security measures appropriate to the risk involved in processing the data of the claiming party, requesting a scanned copy of the ID by email, without demonstrating measures (Article 83.2.a) of the GDPR).

The degree of cooperation with the supervisory authority in order to remedy and mitigate the possible adverse effects of the infringement; thus, when requested during the evidentiary phase to provide the Record of Processing Activities (RAT), risk analysis, and impact assessment carried out in the processing of the data, the responding party did not respond at any time to this request (Article 83.2.a) of the GDPR).

The intent or negligence in the infringement; there is a serious lack of diligence in the actions of the entity due to the absence of measures regarding the method used to verify identity. Also connected with the degree of diligence that the data controller is obliged to exercise in complying with the obligations imposed by data protection regulations, the ruling SAN of 17/10/2007 can be cited, which, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...). the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2.b) of the GDPR).

The activity of the allegedly infringing entity is linked to the processing of data from both clients and third parties. The respondent, given the nature of its activity, finds it essential to process personal data of both clients and third parties, so the significance of its conduct subject to this procedure is undeniable (Article 76.2.b) of the LOPDGD in relation to Article 83.2.k).

In light of the aforementioned circumstances, it is deemed appropriate to impose a sanction of 50,000 euros.

IX

Adoption of measures

The corrective powers that the GDPR attributes to the AEPD as the supervisory authority are outlined in Article 58.2, paragraphs a) to j).

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In this case, it is appropriate to order the responsible party to adopt adequate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

Therefore, it is deemed appropriate to order the respondent to, within six months from the finality of the sanctioning resolution that may be issued, adjust the processing activities subject to this procedure to the applicable regulations. The text of this resolution establishes what the facts have been that led to the violation of data protection regulations, from which it is clearly inferred what measures should be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the respondent, as they are the ones who fully know their organization and must decide, based on proactive responsibility and a risk-based approach, how to

comply with the GDPR and the LOPDGDD, including measures that ensure compliance with what is indicated in Articles 13 and 32.1 of the GDPR and that prevent a new violation.

It is warned that failure to comply with the order imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on ATRIUM LEX SFC, S.L., with NIF B87634564,

- For an infringement of Article 13 of the GDPR classified in Article 83.5.a) of the GDPR, a fine of €50,000 (fifty thousand euros).

- For an infringement of Article 32.1 of the GDPR classified in Article 83.4.a) of the GDPR, a fine of €50,000 (fifty thousand euros).

SECOND: TO ORDER ATRIUM LEX SFC, S.L., with NIF B87634564, that pursuant to Article 58.2.d) of the GDPR, within six months from the date this resolution becomes final and enforceable, to demonstrate compliance with the measures that ensure adherence to the provisions of Articles 13 and 32.1 of the GDPR.

THIRD: TO NOTIFY this resolution to ATRIUM LEX SFC, S.L. with NIF B87634564.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification) has expired.

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notification of this resolution) without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm

resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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